

Chief Justice's Court

Case :- WRIT - C No. - 806 of 2024

Petitioner :- Amit Kumar Khare

Respondent :- State of U.P.

Counsel for Petitioner :- Gopal Das Srivastava, Sr. Advocate

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Arun Bhansali, Chief Justice

Hon'ble Manoj Kumar Gupta, J.

1. On the request of counsel for the petitioner, the case is passed over for the day.

2. List on 26.02.2024 as a fresh case.

Order Date :- 13.2.2024

Brijesh Maurya

(Manoj Kumar Gupta, J.) (Arun Bhansali, C.J.)

Court No. - 21

Case :- WRIT - C No. - 806 of 2024

Petitioner :- Amit Kumar Khare

Respondent :- State of U.P.

Counsel for Petitioner :- Gopal Das Srivastava, Sr. Advocate

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. There is request on behalf of learned Senior Counsel appearing for the petitioner for accommodation.
2. List as fresh on 4.3.2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 26.2.2024

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 806 of 2024

Petitioner :- Amit Kumar Khare

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Gopal Das Srivastava, Sr. Advocate

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

As jointly prayed, list as fresh on 6.3.2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 4.3.2024

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 806 of 2024

Petitioner :- Amit Kumar Khare

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Gopal Das Srivastava, Sr. Advocate

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The petitioner assails the order of final assessment dated 05.12.2023 passed under Section 126 of Electricity Supply Act, 2003.

2. The decision has been taken in pursuance of order dated 11.10.2023 passed in Writ-C No.26698 of 2023 filed by the petitioner challenging demand notice dated 28.03.2023 issued by respondent-Electricity Department for recovery of Rs.7,05,822/- from the petitioner in a case of theft of electricity. The said writ petition was disposed of with liberty to the petitioner to give a composite reply to the impugned notice as well as to the notice of provisional assessment, with a further direction to the respondent-Electricity Department to finalize the assessment proceedings after considering the objections and hearing the petitioner.

3. The main ground of challenge is that in pursuance of the previous order of this Court, the petitioner had filed a detailed objection on 26.10.2023 but, without considering the same, the impugned order has been passed.

4. In reply submitted by the petitioner, it is not disputed that the petitioner had unauthorizedly used electricity by tapping the main L.T. line, although his case is that the same was done by the contractor who was given the task of fabricating the outer gate of the house during renovation work.

5. Sri H.R. Mishra, learned Senior Counsel, appearing for the petitioner, submits that the specific case of the petitioner was that the unauthorized use of electricity had taken place only for two days, whereas the assessment was made for 365 days and in the impugned order there is no consideration of the said objection.

6. We have gone through the impugned order. We find that respondent no.3 while passing impugned order did not even allude

to the aforesaid objection. The representation filed by the petitioner was rejected on the ground that it was bereft of any evidence.

7. In our opinion, once the petitioner had filed objection taking specific plea that the unauthorized use of electricity had taken only for two days, the respondents ought to have considered the said objection, particularly in the light of Section 126(5) of the Act.

8. Sri H.R. Mishra, learned Senior Counsel, has shown willingness to deposit 50% of the disputed amount and submits that the third respondent be directed to decide the said objection.

9. Sri N.K. Tiwari, learned counsel appearing for respondent-Electricity Department, is not in a position to show us that the objection aforesaid was dealt with by respondent no.3 while passing the impugned order.

10. Consequently, we quash the impugned order dated 05.12.2023 and remit the matter back for passing fresh order by respondent no.3 after providing opportunity of hearing to the petitioner, subject to deposit of 50% of the disputed amount by the petitioner within four weeks from today.

11. The petitioner will file evidence relating to deposit of 50% of the amount before respondent no.3 along with copy of the instant order within one week of deposit of the amount. Respondent no.3 will, thereafter, proceed in the manner prescribed under the Electricity Supply Code for making assessments.

12. The petition stands **disposed of**.

Order Date :- 6.3.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)